
Proceedings at the Annual Town Election – May 8, 2023

According to legal notice the voters of the Town of Berlin met in the Town Offices for the Town Election on Monday, May 8, 2023. Notice to the voters and specimen ballots were posted as prescribed by law. The ballot box was examined and found empty and the keys delivered to Police Chief Eric Schartner and at 5 PM Officer John Geis took over until the end. The polls were declared open by Warden Timothy Wysocki at 12:00 Noon and voting continued until 8 PM, when the polls were declared closed. Election workers were as follows: Clerk: Jane Sawyer; Ballot Box Clerk: Mary Wheeler; Checkers: Debra Towle Judith Mills, Noel Rosenberg, Elizabeth Storrs, Robert McTague:

Tellers: Lynda Nelson, Mary Wheeler, Beverly Wheeler, Judy Mills, Tim Wysocki, Lisa Wysocki, Mary Arata, Jessica Meltzer, Richard Mills.

Check lists and registers on the ballot box showed that 286 votes had been cast.

Total regular ballots 2,000. Total regular ballots cast 127; Total absentee and early voting ballots 400; Total absentee ballots sent 370; Total absentee cast 1 /early voting ballots cast 159; Total handicapped voters' ballots 50; Total handicapped ballots cast 0; Total registered voters 2,785.

Results of the balloting:

Moderator – One Year

Barry W. Eager..... 255
Blanks31
Scattering 0
Total286

Town Clerk – Three Years

Eloise E. Salls271
Blanks15
Scattering 0
Total286

Select Board member – Three Years

R. Scott Hawkins..... 259
Blanks 26
Scattering 1
Total286

Assessor – Three Years

Kevin F. Pond261
Blanks 25
Scattering 0
Total286

Constable – Three Years

(Failure to vote)
Blanks 272
Scattering14
Total286

Trustee of Trust Funds – Three Years

Jennifer Pike (write in)..... 94
Blanks187
Scattering5
Total286

Cemetery Commissioner – Three Years

Barry W. Eager..... 256
Blanks 30
Scattering 0
Total286

Library Trustee – Three Years

Susan Skoog (write in)..... 98
Blanks178
Scattering10
Total286

Planning Board – Five Years

Thomas Andrew 238
Blanks 47
Scattering 1
Total286

Board of Health – Three Years

Paul D. Mikelk251
Blanks 34
Scattering1
Total286

The Meeting adjourned at 9:58 PM.

Timothy Wysocki, *Warden*
Jane Sawyer, *Clerk*

Town Clerk

The office is open Tuesday and Thursday 11 a.m. to 2 p.m. and Wednesday night 7–9 p.m. The phone number is (978) 838-2931, FAX (978) 838-0014 and email: TownClerk@TownofBerlin.com.

My appreciation is extended to those people who assisted with the elections and town meetings in 2023. During regular hours I serve as Notary with appropriate identification. Justice of the Peace service requires an appointment.

Purchase dog licenses or vital records online and pay with a credit card through Unibank, for further information www.townofberlin.com.

Dog Licenses: To save the Town postage money, please include *your email address* so dog license reminders can be emailed. **All licenses renew on January 1.** The license fees are (male/female \$11.00 and neutered/spayed \$7.00) and **the penalty is \$5.00 as of April 1 and \$25.00 as of May 1.** Licenses are renewable by mail (with a self-addressed stamped envelope included) or in person at the office with a current rabies certificate.

Nashoba contracts for a dog and cat rabies clinic each spring, dog licenses can be purchased at the same time, suspended under COVID.

Business certificates: Any person conducting a business under a name other than his/her own which is not incorporated with the state, or if incorporated and uses a name different from the incorporated name is required by state law to file a business certificate with the Town Clerk. The certificate is valid for four years, the fee is \$25.00 and a termination or amendment is \$10.00 (with a notice to the Assessors and Building Inspector).

Voter Registration: State required registration sessions will be held prior to each town meeting and election.

Unless you vote absentee in the office, all absentee ballots must be mailed. If you want to fax your request (978-838-0014), include the date, your legal name, voting address, a mail-to address, and your signature. If your absentee ballot is being sent and you don't receive it within six (6) or seven (7) days, please notify me so another ballot can be sent. Please fill out and return the first ballot you receive. Only one ballot can be counted for any individual voter. Also, if it is not too much trouble, please notify me when you mail the ballot so I can give it six (6) or seven (7) days to receive it. If it gets lost or mislaid on the return trip, hopefully, there is still time to send and receive yet another ballot. If you are out of the country, a ballot can be emailed or faxed.

The "Help America Vote Act" has a personal identification requirement that a voter provide as proof of your name and Berlin address ID at the election if you registered through the mail and this is the first time you voted.

If you check off absentee for all elections this year and change address after the initial ballot unless you notify me, the ballots are sent to the address on record. If you are an enrolled voter (U), we send the party ballot you chose, if you change your mind, notify us in writing or write in your candidate.

The Conflict of Interest law: Within 30 days of hire or appointment, you must receive a copy of the "Summary of the Conflict of Interest Law for Municipal Employees" and sign an acknowledge notice for receiving the copy. This continues on a yearly basis, and the acknowledgment is retained in this office for six years. Every two years at www.mass.gov/ethics, the online Conflict of Interest Law Online Training Program must be completed and a State Ethics Commission Receipt filed with the town clerk.

FY2023 BOARD OF APPEALS APPLICATIONS:

1. Variance from side-lot setback, 100 Carter St., Alan Roseberry, Dynamic fire, approved
2. Site Plan, 100 Carter St., Alan Roseberry, Dynamic fire, approved
3. Special Permit, 100 Carter St., Alan Roseberry, Dynamic fire, approved
4. Site Plan, 275 Central St, Mike Yerardi, approved
5. Variance, 10 Bigelow Rd, Kathleen Adams approved.
6. Site Plan, 10 Bigelow Rd, Kathleen Adams, approved
7. Special Permit, Home based construction permit renewal, 83 Coburn Rd, approved
8. Variance, garage, 8 Highland St., Mary Porter, approved
9. Variance, Old Burying Ground, Hearse House, approved
10. Special Permit, 339 Old Central St., car wash and detailing business, denied
11. Site Plan, 339 Old Central St., car wash and detailing business, denied
12. Special Permit, 107 Coburn Rd, Jeff Curtis, Home based Contracting Business
13. Appeal Building Inspectors turn down letter for a car wash, 339 Old Central, SJV Investments, denied
14. Special Permit, In-law apartment, 203 Crosby Rd., Kevin & Kasey Toto, approved
15. Site Plan, Special Permit approved and Variance denied, 107 Coburn Rd., Jeff Curtis, Culley's Septic, Inc (CSI).

All monies collected by the Town Clerk are paid to the Town Treasurer.

Respectfully submitted,
Eloise E. Salls, *Town Clerk*
James H. Wheeler, *Assistant Town Clerk*